

SENATE BILL 322

By Massey

AN ACT to amend Tennessee Code Annotated, Section 8-50-813, relative to state employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-50-813(a), is amended by deleting the subsection and substituting:

(a) In addition to leave granted under §§ 8-50-801, 8-50-802, and 8-50-806, an eligible employee must be granted absence from work with pay for a period of time equal to six (6) workweeks because of the birth of the employee's child or the placement of a child with the employee for adoption, or because the employee is caring for a family member with a serious health condition, and upon the employee giving thirty-days' notice to the appropriate appointing authority. If the eligible employee learns of the birth, adoption, or family member's serious health condition less than thirty (30) days in advance, the employee shall give the notice as soon as reasonably possible. For the purpose of calculating service anniversary dates, this absence from work is considered full-time employment.

SECTION 2. Tennessee Code Annotated, Section 8-50-813(d), is amended by deleting the subsection and substituting:

(d) An eligible employee must not be granted more than six (6) workweeks of paid leave under subsection (a) during a twelve-month period, but the workweeks do not need to be taken consecutively. Leave granted under subsection (a) may be taken on a reduced schedule or intermittently as provided under 29 U.S.C. § 2612 of the federal Family and Medical Leave Act. An eligible employee may receive no more than six (6)

workweeks of paid leave during a twelve-month period, even if there is more than one (1) qualifying birth, adoption, or family member's serious health condition under subsection (a). Leave granted pursuant to this section must be used within twelve (12) months of the qualifying birth, adoption, or family member's serious health condition.

SECTION 3. Tennessee Code Annotated, Section 8-50-813(e), is amended by deleting the subsection and substituting:

(e) As used in this section:

(1) "Eligible employee" means:

(A) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in §§ 8-30-102(a), 8-30-102(b)(2), 8-30-102(b)(6)-(7), and 8-30-102(b)(10)-(13); or

(B) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in § 8-30-102(b)(9), except for an employee of any administrative board or commission that is attached to an entity described in § 8-30-102(b)(1) or § 8-30-102(b)(3)-(5);

(2) "Family member" means:

(A) A child;

(B) A biological, adoptive, or foster parent, stepparent or legal guardian of an employee or an employee's spouse or domestic partner, or a person who stood in loco parentis when the employee or the employee's spouse or domestic partner was a minor child;

(C) A person to whom the employee is legally married under the laws of any state, or a domestic partner of an employee;

(D) A grandparent, grandchild, or sibling (whether a biological, foster, adoptive, or step relationship) of the employee or the employee's spouse or domestic partner; or

(E) Another individual related by blood or whose close association with the covered individual is the equivalent of a family relationship; and

(3) "Serious health condition" means an illness, injury, impairment, or physical or mental condition that involves:

(A) Inpatient care in a hospital, hospice, or residential medical care facility; or

(B) Continuing treatment by a healthcare provider.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.